

Exercise Class 3: The Pros and Cons of Democracy

Political & Economic Thought — Master Notes · by Jakob V. Stangel

Readings: Montesquieu, *The Spirit of the Laws* (1748), Books II, III, VIII · Tocqueville, *Democracy in America* (1835), Introduction & Book 1 chs 4, 8, 9 & Book 4 ch 6 · CNN, 'House votes to impeach' (13 Jan 2021).

The class's question (from Joachim). Prepare three things: (1) the **views on democracy** in Montesquieu and Tocqueville — *is democracy feasible in their eyes, and what are its pros and cons?* (2) *How does Montesquieu build his argument* — the **structure** of his text and how he defines the **types of government?* (3) *What are Tocqueville's threats to democracy, and his arguments?* This class pairs the **18th-century typologist** (Montesquieu, whom we met in [Module 4](#)) with the **19th-century sociologist** (Tocqueville, [Module 5](#)) — two very different ways of asking whether a people can safely rule itself.

★ **The red thread:** both think democracy is **possible but fragile**, and that its survival depends less on **institutions** than on the **moral condition of the people**. For **Montesquieu**, democracy runs on **virtue** (love of country + equality) and dies of "**extreme equality**" — feasible only in a **small state**. For **Tocqueville**, democracy is an **irresistible social condition**, feasible in large modern nations **only if guided** — its threats are **tyranny of the majority, individualism and soft despotism**. The exam-usable convergence: **democracy = feasible but fragile; it stands or falls on the people's mores (virtue / mœurs), not its constitution.**

Montesquieu — *The Spirit of the Laws* (Books II, III, VIII)

Résumé. These three books are Montesquieu's **theory of regime types**. He classifies governments, then explains what makes each **run** and what makes each **rot**. Democracy appears here not as *the* ideal but as **one type among three**, admirable in some respects, structurally fragile in others. (*For his separation of powers and esprit général, see [Module 4](#); this class is about the nature / principle / corruption framework.*)

How he builds the argument: nature → principle → corruption

Core: Montesquieu's method is **architectural** — **one Book per stage**. He defines each government (its **nature**), then finds the **passion** that drives it (its **principle**), then shows how it **decays** when that passion fails (its **corruption**). *This three-stage structure IS his answer to "how does he establish his arguments."*

- **Book II — the nature of a government:** its **structure** — "that by which it is constituted": *who holds supreme power*, and the fundamental laws that follow.
- **Book III — the principle of a government:** its **motor** — "the human passions which set it in motion." The **nature/principle distinction** is his "**master key**" ("the key of an infinite number of laws").
- **Book VIII — the corruption of a government:** "the corruption of a government generally begins with that of its principles" — kill the passion and the regime rots.

- **His style / how he persuades** (for the "how" question): **comparative and typological** (everything sorted into the same triad and cross-compared); **aphoristic/imagistic** ("monarchies lose themselves in despotic power" as "rivers hasten to mingle with the sea"); **historical-empirical** (Athens, Sparta, Rome, Carthage, China — "the unanimous testimony of historians"); **causal** (climate, geography, religion, the size of territory); and **prescriptive** — the principles state what a regime *ought* to run on, "otherwise the government is imperfect."

The types of government — nature & principle

Core: three species (democracy is a sub-type of the first), each defined by *who rules* (nature) and *what passion sustains it* (principle).

Government	Nature (who holds power)	Principle (its animating passion)
Republic — Democracy	the whole body of the people is sovereign, via suffrage	Virtue (political virtue)
Republic — Aristocracy	a part of the people holds power	Virtue, esp. moderation
Monarchy	one rules by fixed, established laws through <i>intermediate powers</i> (nobility, courts)	Honour
Despotism	one rules by will and caprice , through a <i>vizir</i>	Fear

- **Democracy's nature in detail** (Bk II): "the people are in some respects the sovereign, and in others the subject." Sovereignty is exercised **only through suffrage**, so "**the laws which establish the right of suffrage are fundamental to this government.**" The people **choose magistrates** but do not administer directly.
- **The choose-vs-govern point** (the exam-critical passage): the people are "**extremely well qualified for choosing**" those they entrust with power — they judge by "facts obvious to sense" (a general's victories, a judge's record). **But** "are they capable of conducting an intricate affair... of seizing the critical moment of action? **No; this surpasses their abilities.**" → **Good at electing, bad at administering.** ("The people's motion is always either too remiss or too violent.")
- **Monarchy needs nobility** (Bk II): "**no monarch, no nobility; no nobility, no monarch; but there may be a despotic prince.**" The **intermediate powers** are what keep a monarchy from collapsing into despotism — an idea echoing his separation of powers and picked up by Tocqueville's fear of lost intermediate bodies.

Democracy's principle: VIRTUE

Core: democracy is the government that most **depends on the character of its citizens**. Its motor is **virtue** — and by "virtue" Montesquieu means something specific and *political*.

- **Why democracy needs virtue most.** In a monarchy the **laws** and in a despotism the **prince's arm** are enough; but in a popular state, where the people are *both* rulers and ruled, "**one spring more is necessary, namely, virtue.**" When the executor of the laws is also subject to them, only an inner

devotion keeps the system honest. "When... there is a suspension of the laws... the state is certainly undone."

- **What "virtue" means** (his own footnote — crucial, so it isn't confused with Christian morality): **"political virtue... moral virtue as it is directed to the public good"** — i.e. **love of country, love of equality, love of frugality**, self-renunciation for the common good. *In plain terms*: citizens must **care more about the republic than about themselves**. *Not* private piety; *not* revealed religion.
- **When virtue goes, democracy dies**: "ambition invades... and avarice possesses the whole community." Athens had the same *forces* (20,000 citizens) in her glory and her fall — the difference was **virtue**: "It was ever after as easy to triumph over the forces of Athens as it had been difficult to subdue her virtue."

Democracy's corruption: the "spirit of extreme equality"

Core: Book VIII. Democracy can rot in **two opposite ways** — by losing equality, or by pushing equality to a mad extreme. The second is the famous one, and it leads straight to **despotism**.

- **The two excesses** (memorise this): democracy has **"two excesses to avoid — the spirit of inequality, which leads to aristocracy or monarchy, and the spirit of extreme equality, which leads to despotic power."**
- **What "extreme equality" is**. True equality means we **"obey and command our equals"** — everyone equal *as citizens*, under law. **Extreme** equality is when "each citizen would fain be upon a level with those whom he has chosen to command him" — the people, "incapable of bearing the very power they have delegated, want to manage everything themselves, to **debate for the senate, execute for the magistrate, and decide for the judges**." *In plain terms*: when nobody will accept **any** authority — not magistrates, not elders, not parents — all order dissolves.
- **The cascade & the demagogues**. Respect collapses "for magistrates... senators... old age... parents... masters," until "there is no such thing as manners, order, or virtue." Into this chaos step **demagogues** who "flatter the people's avarice," buy suffrages, and **"the greater the advantages they seem to derive from their liberty, the nearer they approach the critical moment of losing it.** Petty tyrants arise... a single tyrant starts up." → **Extreme democracy ends in despotism.**
- **Principles trump laws**: "When once the principles of government are corrupted, the very best laws become bad... but when the principles are sound, even bad laws have the same effect as good." → *The same lesson as Tocqueville's mœurs*: a democracy is only as good as the character of its people, not its paper constitution.

The feasibility verdict: democracy needs a *small* state

Core: Montesquieu's structural limit on democracy — and the deepest reason he doubts it for a large modern nation.

- **"It is natural for a republic to have only a small territory; otherwise it cannot long subsist."** In a large republic there are "men of large fortunes, and consequently of less moderation"; the public good "is sacrificed to a thousand private views." In a small one "the interest of the public is more obvious, better understood, and more within the reach of every citizen."
- **The scaling law**: small states → republic; middling → monarchy; large empires → despotism. ("Monarchies lose themselves in despotic power" as states grow.) → *This is exactly the problem Constant,*

the Federalists, and Tocqueville inherit: if genuine democracy needs a **small, virtuous** city, how can a **vast, commercial, modern** nation be free? Their answer — **representation** — is what Montesquieu's small-republic pessimism sets up.

Montesquieu — pros & cons of democracy:

- **Pros:** the people are **excellent judges** of merit (good electors); sovereignty genuinely resides in them; they can hold rulers to account; when animated by **virtue** they produce heroic public spirit (Athens vs Persia).
- **Cons / limits:** the people are **bad administrators**; democracy **requires virtue**, which is hard to sustain and fatal to lose; it faces **two opposite corruptions** (loss of equality → oligarchy; extreme equality → anarchy → despotism); and it is **feasible only in a small territory**.
- **Verdict:** feasible but **fragile and small-scale**; Montesquieu's own preference tilts toward **moderate monarchy with intermediate powers** for large modern states.

Tocqueville — *Democracy in America* (Intro, Bk 1 chs 4/8/9, Bk 4 ch 6)

Résumé. The same primary text at the heart of Module 5 — so the concepts (equality of conditions, individualism, tyranny of the majority, soft despotism, the antidote of participation) are developed there. Here we focus on the **specific extracts** this class assigns and the class's "threats" question.

| Sovereignty of the people (Intro; Bk 1 ch 4)

Core: in America the **sovereignty of the people** is not a hidden fiction (as in Europe, where "the will of the nation" is "abused by the wily and the despotic") but an **open, working, all-pervading principle** — followed "without impediment... to its most remote consequences."

- Democracy is grounded in the "**providential fact**" of equality of conditions (Intro) — "universal, durable... it constantly eludes all human interference." To resist it "would be to resist the will of God."
- In America "**society governs itself for itself**"; laws are made by the people directly ("as at Athens") or by representatives "chosen by universal suffrage."
- **The universal-suffrage ratchet:** once you start extending the franchise, "no stop can be made short of universal suffrage" — each extension strengthens the demand for the next. → Democracy is **self-radicalising**.

| What *maintains* a democratic republic (Bk 1 chs 8–9)

Core: ch. 8 is Tocqueville's admiring reading of the **Federal Constitution** — how good institutional design **channels** popular sovereignty; ch. 9 pivots toward its **danger**.

- **Federalism as a brake** (ch. 8): "the government of the States remained the rule, and that of the Confederation the exception" — powers "carefully enumerated," the rest reserved. He praises America's calm, **bloodless self-correction**: when the first Union failed, a great people "patiently waited two whole years until a remedy was discovered... without having wrung a tear or a drop of blood." "**The Revolution of America terminated when that of France began.**" (There's the whole historical contrast in one line.)

- **The Senate/House compromise:** "the independence of the States prevailed in the Senate, and the sovereignty of the nation in the House."
- **The pivot to danger** (ch. 9): "**In the United States the majority governs in the name of the people**" — "the people is... the real directing power." Above all institutions sits "a sovereign power... that of the people," and nothing checks its will → the doorway to the tyranny of the majority. (These extracts introduce the theme; Tocqueville's full treatment of majority tyranny's effect on the mind is in chs 15–16, beyond the assigned pages.)

| The tutelary despotism (Bk 4 ch 6)

Core: the class's other centrepiece — Tocqueville's portrait of the **new soft despotism**, fully developed in the Module 5 notes. The one-paragraph version: a mild "**immense and tutelary power**" keeps an atomised, comfort-seeking people in "**perpetual childhood**," casting "a network of small complicated rules" until the nation is "a flock of timid and industrious animals, of which the government is the shepherd."

- Its uniquely modern danger: it **coexists with popular sovereignty** — people "combine the principle of centralization and that of popular sovereignty," electing their own guardians and "consol[ing] themselves for being in tutelage." An elected shepherd is still a shepherd: "the nature of him I am to obey signifies less to me than the fact of extorted obedience."
- Root cause: the "**general apathy which is the consequence of individualism**" — the real enemy, which "may almost indifferently beget either anarchy or despotism."

| The threats to democracy (the class's Tocqueville question)

Core: gather them into a ledger — Tocqueville's **arguments**, not just labels:

Threat	The argument
Tyranny of the majority	with nothing above majority will, minorities and independent minds are crushed — above all by the conformity of opinion ("less independence of mind... than in America")
Individualism	equality snaps the social "chain"; citizens withdraw into private life, draining the public sphere
General apathy	the consequence of individualism; the true enemy, which "may indifferently beget anarchy or despotism"
Soft / tutelary despotism	a mild central power manages passive citizens into "perpetual childhood" — wearing the <i>forms</i> of freedom
Over-centralization	democracy destroys the intermediate bodies that once resisted tyranny; the state inherits their power (<i>the point Montesquieu also makes about intermediate powers</i>)
Botched transition	equality <i>without</i> the guiding mores/institutions (France) slides toward despotism, not freedom

- **His arguments' shape:** each threat is **sociological** — it grows from the **social condition of equality itself**, not from bad laws or bad men. That's why his cure is also social: participation, associations and local liberty, which re-weave the bonds equality dissolves.

★ Montesquieu vs Tocqueville — the exercise class's payoff

	Montesquieu (1748)	Tocqueville (1835)
What is democracy?	one regime type among three (nature + principle)	an irreversible social condition (equality of conditions)
What sustains it?	virtue (love of country, equality, frugality)	mœurs — associations, religion, local liberty, "self-interest well understood"
Its characteristic death	extreme equality → anarchy → a "single tyrant"	individualism → apathy → soft despotism
Feasible where?	only in a small state	in large modern nations — but only if guided
Method	typological, comparative, historical	empirical political sociology
Shared conclusion	democracy is feasible but fragile; it depends on the character of the people, not the constitution — "corrupt the principle and the best laws turn bad" (M) / mores matter more than institutions (T)	

- The bridge between them: both fear a loss of intermediate bodies and both make the people's moral condition the load-bearing wall. Montesquieu supplies the static typology and the small-state pessimism; Tocqueville supplies the dynamic, sociological update for the age of mass democracy — and the twist that democracy's gravest danger is not too much turbulence (Montesquieu's anarchy) but too much comfort (soft despotism).

CNN — 'House votes to impeach' (13 Jan 2021) — a live test

Core: the contemporary anchor: one week after the 6 January 2021 attack on the US Capitol, the House voted 232–197 to impeach the President a second time on a single charge — "incitement of insurrection." Ten Republicans joined all Democrats, including the No. 3 House Republican, Liz Cheney.

- Why it's on this syllabus (link it to the theory).
 - **Montesquieu:** Book VIII warned that demagogues who flatter the people are how democracies slide toward a "single tyrant" — and that a republic's survival rests on virtue and on institutions holding their nerve. Impeachment is the constitutional machinery for a republic defending its principle against exactly that danger. It also stages his choose-vs-govern worry and the fragility of popular passions.
 - **Tocqueville:** the episode dramatises both his fear (an inflamed majority/leader vs the rule of law; the vulnerability of self-government) and his hope (the "intermediate" institutions and constitutional forms that check power — Congress, courts, federalism — the very "barriers against

despotism" he admired in America). The **peaceful transfer of power**, contested and then upheld, is the American self-correction he praised ("without a tear or a drop of blood") under stress.

- **Exam use:** a ready case for "*is democracy fragile or resilient?*" — evidence **both** ways. Fragile (a mob storms the legislature; a majority of one party declines to convict) *and* resilient (institutions impeach, courts hold, power transfers). Pair it with Cassidy on oligarchy for a rounded modern picture of democracy's health.

★ Prep-question answers

1 • The views on democracy in Montesquieu & Tocqueville — is it feasible? Pros & cons? **Answer:** both see democracy as feasible but fragile, resting on the people's moral condition. Montesquieu: democracy is one regime type, running on virtue; its pros are the people as **good electors** and genuine self-rule; its cons are their incompetence at **administration**, the difficulty of sustaining virtue, its two corruptions (esp. **extreme equality** → **despotism**), and its feasibility **only in a small state** — so for large modern nations he leans to **moderate monarchy**. Tocqueville: democracy isn't a choice but an irresistible social condition; feasibility is not the question — *guidance* is. Its pros are prosperity, self-government and equality-before-the-law; its cons are the tyranny of the majority, individualism and soft despotism. Both converge: democracy survives on mores/virtue, not on its constitution.

2 • How does Montesquieu build his argument? Structure? Types of government? **Answer:** see structure and types. A three-stage architecture, one Book each: **nature** (Bk II — who holds power) → **principle** (Bk III — the animating passion) → **corruption** (Bk VIII — how the principle rots). He argues by **comparison, historical example, aphorism, and physical causes** (climate, size). The types: **republic** (democracy = the whole people, principle **virtue**; aristocracy = a part, principle **moderation**), **monarchy** (one under fixed laws via intermediate powers, principle **honour**), **despotism** (one by caprice via a vizir, principle **fear**). The **nature/principle distinction** is his "master key."

3 • Tocqueville's threats to democracy — and his arguments? **Answer:** see the threats ledger. The major threats are **tyranny of the majority** (esp. the **conformity of opinion**), **individualism**, **apathy**, and **soft/tutelary despotism**, compounded by **over-centralization** and **botched transition**. His **argument** is distinctive: these dangers grow **out of the social condition of equality itself** — not from bad laws or wicked rulers — which is why they are so insidious and why the remedy must also be **social: participation, associations and local self-government** that rebuild the civic bonds equality dissolves.

★ Fun facts & memorable details

Sticky bits from Exercise Class 3 (Montesquieu • Tocqueville • the pros & cons of democracy).

- Montesquieu's democracy runs on "virtue" — **but not the virtue you think**. He had to add a footnote insisting he meant **political** virtue (love of country and equality), "very little of **private moral virtue**, and not at all of that which relates to revealed truths." Generations misread him anyway.
- "The people are admirable at choosing, hopeless at governing." Montesquieu's split verdict — great **electors**, bad **administrators** — is the ancestor of every modern argument for **representative**

(not direct) democracy.

- His **scaling law** is almost a formula: **small state → republic, middling → monarchy, large empire → despotism**. "Rivers hasten to mingle with the sea; and monarchies lose themselves in despotic power."
 - **Extreme equality kills democracy**. For Montesquieu the danger isn't too little equality but **too much** — when no one will obey *anyone*, "petty tyrants arise... a single tyrant starts up." Anarchy is the **antechamber of despotism**.
 - A translator's note in the class extracts warns that the standard **English Tocqueville** (Reeve's) "vividly coloured what was contrary to Democracy and almost erased what could do harm to Aristocracy" — a reminder that even the **translation** carries a politics.
 - **"The Revolution of America terminated when that of France began."** Tocqueville's whole comparative project in nine words — one revolution built a lasting order, the other opened 60 years of turmoil.
 - The class deliberately ends in **2021**: an insurrection, an impeachment, and a contested-but-completed transfer of power — proof that Montesquieu's and Tocqueville's questions about whether a free people can govern itself are **not** museum pieces.
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